

**ACCESS AND PARKING EASEMENT
AND SERVITUDE AGREEMENT**

THIS ACCESS AND PARKING EASEMENT AGREEMENT (the “**Agreement**”), is made and entered into as of the 17 day of December, 2015 (the “**Effective Date**”), by and between

BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company, domiciled in the Parish of Lafayette, State of Louisiana, having a permanent mailing address of 101 Arnould Boulevard, Lafayette, Louisiana, 70506, represented herein by Edward E. Abdalla, IV, its duly authorized representative (“**Belle**”); and

OUR SAVIOR’S CHURCH, a Louisiana non-profit religious corporation, domiciled in the Parish of Lafayette, State of Louisiana, having a permanent mailing address of 655 Highway 96, Broussard, Louisiana 70518, represented herein by Don Norman, its Executive Pastor (the “**Church**”),

each of whom declared as follows:

RECITALS

WHEREAS, Belle is the owner of certain immovable property located in Lafayette Parish, Louisiana, said property being more particularly described on **Exhibit A**, which is attached hereto and made a part hereof by reference (the “**Belle Property**”);

WHEREAS, the Church is the owner of certain immovable property located in Lafayette Parish, Louisiana, said property being more particularly described on **Exhibit B**, which is attached hereto and made a part hereof by reference (the “**Church Property**”);

WHEREAS, in order to accommodate congregants and visitors who attend the Church’s Sunday services, and other Church events occurring between 6:00 P.M. and 12:00 A.M., the Church has requested that Belle grant the Church a non-exclusive parking easement and servitude over certain portions of the Belle Property; and

WHEREAS, Belle and the Church have reached certain agreements and understandings with respect to the granting of a non-exclusive parking easement and servitude, and wish to reduce those agreements and understandings to writing.

AGREEMENTS

NOW, THEREFORE, in consideration of the mutual agreements contained herein, Belle and the Church each agree and covenant as follows:

1. Grant of Easement to the Church. Subject to the conditions set forth herein, Belle does hereby grant and convey to the Church, its guests, employees and invitees, a non-

exclusive easement and servitude over, upon and across the Easement and Servitude Area (as hereinafter defined) for the purposes of (i) parking light passenger vehicles, and (ii) ingress and egress for such vehicle and pedestrian passage associated with such parking (the “**Easement and Servitude**”). The Easement and Servitude shall be limited to those areas shaded in yellow on the survey attached hereto as **Exhibit “C”** (the “**Easement and Servitude Area**”).

2. Restrictions. The right of the Church, its guests, employees and invitees, to exercise the rights herein granted shall be subject to the following restrictions:

(a) The Church, its guests, employees and invitees, may use the Easement and Servitude on Sundays for purposes of attending the Church’s weekly religious services. Between Thanksgiving and Christmas of each year, such use shall be restricted to allow parking commencing thirty minutes prior to the start of the 9:00 A.M. service and ending thirty minutes after the completion of the 11:00 A.M. service, or at 1:00 P.M., whichever is earlier.

(b) The Church, its guests, employees and invitees, may use the Easement and Servitude for Church meetings and activities between the hours of 6:00 P.M. and 12:00 A.M. on any day.

(c) Except as provided in subsections (a) and (b) above, the Church shall be allowed to use the Easement and Servitude only upon receipt of written permission of Belle, which shall be at the sole discretion of Belle.

The Church specifically acknowledges that the foregoing restrictions are necessary to ensure that Belle’s tenants have sufficient parking for their various purposes, and that such purposes will be frustrated if the restrictions are not strictly adhered to. Belle reserves the right to have any vehicle parked on the Belle Property in violation of the restrictions set forth herein removed from the Belle Property.

3. Church Obligations.

(a) **Written Waiver of Opposition.** In return for the granting of the Easement and Servitude by Belle, the Church hereby agrees to provide written waiver of opposition to the issuance of a permit to sell, serve, and/or dispense alcoholic beverages relative to the operation of any restaurant establishment upon the Belle Property. Such restaurant establishment shall be subject to the requirements of Section 6-36(a) of the Lafayette City-Parish Code of Ordinances, establishing additional criteria for the waiver of distance requirements for restaurants with alcoholic beverage permits when such restaurant is located within one hundred seventy-five (175) feet of a church or synagogue.

(b) **Maintenance and Repair.** The Church shall pay to Belle the sum of One Hundred (\$100.00) Dollars per month to offset the cost of maintaining and repairing the Easement and Servitude Area.

4. **Term.** This Agreement shall have a term of twenty-five (25) years; provided, however, that either party may terminate this agreement for any reason upon seven (7) days' written notice. Termination shall not be granted or apply retroactively.

5. **Non-Exclusive.** The parties acknowledge that the Easement and Servitude are non-exclusive. Without limiting the generality of the foregoing, the parties acknowledge that Belle, and Belle's successors, assigns, tenants, lessees, customers, guests, employees and invitees shall continue to have the right to use such the Belle Property and the Easement and Servitude area located thereon.

6. **Existing Rights.** The Easement and Servitude is subject to all leases, easements, servitudes and other rights of record in the office of the Clerk of Court for Lafayette Parish, Louisiana affecting the Easement and Servitude Area.

7. **Indemnity.** Belle shall not be responsible for any harm or damage to the Church, its officers, employees, shareholders, agents or invitees, as a result of the use by any person or persons of the Easement and Servitude. The Church shall hold harmless and indemnify Belle from all damages arising out of any loss, theft, injury or damage to any person or property (as the case may be) occurring in, on, or about the Belle Property, except for damages resulting from the gross negligence or willful conduct of Belle.

8. **Insurance.** The Church, at its cost, shall maintain comprehensive general liability insurance in a minimum amount of \$1,000,000.00 for each occurrence with a \$1,000,000.00 general aggregate, including \$1,000,000.00 personal and advertising coverage, \$100,000.00 in fire legal liability, and \$5,000.00 in medical payments, insuring against all liability of the Church arising out of and in connection with Church's use of the Easement and Servitude Area and/or exercise of the Easement and Servitude. All such insurance policies shall name Belle as an additional insured. At the Commencement Date and on each anniversary date of the Commencement Date, the Church shall supply to Belle a certificate that such insurance is in force and the requisite premiums have been paid. The Church's insurance policies and coverage shall be endorsed to apply on a primary basis. It is further provided that the Church's insurance policies and coverage shall contain (either directly in the policy or by endorsement) a provision that provides that Belle shall be entitled to thirty (30) days prior written notice of cancellation and/or non-renewal of such policy or coverage of the Church.

9. **Notice.** Any notice, demand, request, or consent that either party describes or is required to be given hereunder shall be in writing and shall be deemed sufficient if sent by United States first class mail, return receipt requested:

If to Belle:

BELLE REALTY OF LAFAYETTE, L.L.C.
101 Arnould Boulevard
Lafayette, Louisiana 70506

with copy to:

Richard L. Becker, Esq.
BECKER AND HEBERT, LLC
201 Rue Beauregard
Lafayette, Louisiana 70508

If to the Church:

Pastor Don Norman
OUR SAVIOR'S CHURCH
655 Hwy 96
Broussard, LA 70518

10. Headings. Headings in this Agreement are for convenience only and shall not be used to interpret or construe its provisions.

[Signatures appear on following pages.]

STATE OF LOUISIANA

PARISH OF LAFAYETTE

~~December~~ **THUS DONE AND PASSED**, in my office at Lafayette, Louisiana on the 17 of ~~November~~, 2015, in the presence of the undersigned competent witnesses, who hereunto sign their names with the appearer and me, Notary, after reading of the whole.

WITNESSES:

Linda G. Landry
Print: Linda G. Landry

Rachael Landry
Print: Rachael Landry

BELLE REALTY OF LAFAYETTE, L.L.C.,
a Louisiana limited liability company

By: Edward E. Abdalla
Mr. Edward E. Abdalla, IV
Managing Member

Stuart R. Breaux
NOTARY PUBLIC

STUART R. BREUX
NOTARY PUBLIC
STATE OF LOUISIANA
EXP. NO. 33741
COMMISSION IS ISSUED FOR LIFE

STATE OF LOUISIANA

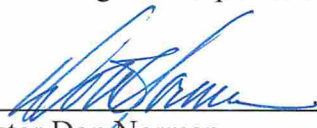
PARISH OF LAFAYETTE

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WITNESSES:

OUR SAVIOR'S CHURCH, a Louisiana
non-profit religious corporation

Print: _____

By: 
Pastor Don Norman
Executive Pastor

Print: _____

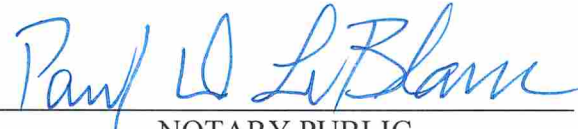

NOTARY PUBLIC
FOR LIFE ID # 014152

EXHIBIT "A"
Description of the Belle Property

A parcel of Ground located in Section 42, Township 10 South, Range 4 East, Lafayette Parish, Louisiana, within the City Limits of the City of Lafayette and being a portion of the formally dedicated Block 1 of Arnould Heights Subdivision and Block I of Arnould Heights Extension No. 1.

Commencing at the Southwest Right-of-Way corner of Arnould Boulevard and Patricia Street thence South $38^{\circ}32'00''$ East a distance of 25.00 feet to the Point of Beginning.

Thence South $38^{\circ}23'00''$ East a distance of 550.12 feet; thence South $51^{\circ}28'00''$ West a distance of 100.00 feet; thence South $38^{\circ}32'00''$ East a distance of 120.61 feet; thence along a curved line to the Left having a radius of 1,872.44 feet, Length of 168.53 feet and a chord of South $51^{\circ}07'34''$ West with a distance of 168.48 feet; thence along a curved line to the Right having a radius of 30.00 feet, Length of 48.65 feet and a chord of North $84^{\circ}59'34''$ West a distance of 43.49 feet; thence North $38^{\circ}32'00''$ West a distance of 641.77 feet; thence along a curved line to the Right having a Radius of 25.00 feet, Length of 39.27 feet and a chord of North $06^{\circ}28'00''$ East a distance of 35.36 feet; thence North $51^{\circ}28'00''$ East a distance of 250 feet; thence along a curved line to the Right having a Radius of 25.00 feet, Length of 39.27 feet and a chord of South $83^{\circ}32'00''$ East a distance of 35.36 feet to the Point of Beginning.

AND

LOT 7, BLOCK M, ARNOULD HEIGHTS SUBDIVISION, EXT. NO. 1

A parcel of ground located in Section 42, Township 10 South, Range 4 East, Lafayette Parish, Louisiana, within the City of Lafayette being more particularly described as follows:

Commencing at the southwestern right-of-way corner of the intersection of Marie Antoinette Street and Patricia Street, thence South $38^{\circ}32'00''$ East a distance of 25.00 feet to the Point of Beginning.

Thence South $38^{\circ}32'00''$ East a distance of 75.00 feet; thence South $51^{\circ}28'00''$ West a distance of 150.17 feet; thence North $38^{\circ}43'28''$ West a distance of 100.00 feet; thence North $51^{\circ}28'00''$ East a distance of 125.50 feet; thence along a curve to the right having a radius of 25.00 feet, an arc length of 39.27 feet, and a chord of South $83^{\circ}32'00''$ East and a distance of 35.36 feet to the Point of Beginning.

EXHIBIT "B"
Description of the Church Property

That certain parcel of ground, together with all improvements thereon, and all rights, ways, privileges, servitudes, appurtenances and advantages thereunto belonging and all appurtenances thereof, being known and designated as LOTS ONE (1), TWO (2), THREE (3) and FOUR (4) of BLOCK M or ARNOULD HEIGHTS SUBDIVISION, EXTENSIONS NO. ONE (1), a subdivision of the Parish of Lafayette, Louisiana on that certain plat of survey prepared by Fred L. Colomb, Surveyor, attached to that act recorded under Entry No. 286167 of the records of Lafayette, Louisiana, and made part hereof by reference, and being described with reference thereto as having a frontage on Marie Antoinette Street, and as having such dimensions, boundaries and measurements as are more fully shown on said plat of survey.

Being the same property acquired by Emmanuel Baptist Church of Lafayette, Louisiana, in that act dated May 25, 1955 recorded under Entry No. 320138 of the records of Lafayette Parish, Louisiana, and in that act dated November 12, 1955, recorded under Entry No. 329001 of the records of Lafayette Parish, Louisiana.

AND

That certain parcel of ground, together with all improvements thereon, and all rights, ways, privileges, servitudes, appurtenances and advantages thereunto belonging and all appurtenances thereof, being known and designated as LOT FOUR (4) of BLOCK A of the PIERRET SUBDIVISION, a subdivision of the Parish of Lafayette, Louisiana on that certain plat of survey prepared by Fred L. Colomb, Surveyor, attached to that act recorded under Entry No. 286146 of the records of Lafayette Parish, Louisiana, and made part hereof by reference, and being described with reference thereto as having a frontage on Leonie Street and as having such dimensions, boundaries and measurements as are more fully shown on said plat of survey.

Being the same property acquired by Emmanuel Baptist Church of Lafayette, Louisiana, in that act recorded under Entry NO. 395818 of the records of Lafayette Parish, Louisiana.

EXHIBIT "C"
Survey showing Easement and Servitude Area

